

## 26CHCV00747 26CHCV00747

County: los-angeles

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Case Number: 26CHCV00747 Hearing Date: July 28, 2026 Dept: F49

Dept. F49

Date: 7/28/26

Case Name: Brianna Solis vs. Lisa Hernandez; Los Angeles Unified School District; and Does 1-100

Case No. 26CHCV00747

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 28, 2026

MOTION FOR LEAVE

TO FILE SECOND AMENDED COMPLAINT

Los Angeles Superior

Court Case No. 26CHCV00747

Motion filed: 6/8/26

MOVING PARTY: Plaintiff Brianna Solis

RESPONDING PARTY: Defendant Los Angeles Unified

School District

NOTICE: OK

RELIEF REQUESTED: An order from this Court granting Plaintiff Brianna Solis leave to file the proposed Second Amended Complaint.

TENTATIVE RULING: The motion is GRANTED IN PART.

#### BACKGROUND

This action arises from injuries sustained by Plaintiff Brianna Solis ("Plaintiff") when Defendant Lisa Hernandez ("Hernandez") allegedly forcefully pushed Plaintiff into a table at Gridley Street Elementary School. On February 20, 2026, Plaintiff, by and through her guardian ad litem, Guadalupe Rosillo, initiated this action. Subsequently, on May 21, 2026, Plaintiff filed the operative First Amended Complaint ("FAC") against Hernandez, Defendant Los Angeles Unified School District ("LAUSD") (collectively, "Defendants"), and Does 1 through 100, alleging the following causes of action: (1) assault, (2) battery, (3) intentional infliction of emotional distress, (4) negligent hiring, supervision, and retention, and (5) violation of Civil Code sections 52 et seq.

On June 10, 2026, LAUSD filed its Answer to the FAC. On July 9, 2026, Hernandez filed her Answer.

On June 8, 2026, Plaintiff filed the instant Motion for Leave to File Second Amended Complaint (the "Motion").

On July 14, 2026, Defendant filed an Opposition.

On July 21, 2026, Plaintiff filed a Reply.

#### ANALYSIS

The court may, in furtherance of justice, allow a party to amend any pleading upon any terms as may be proper. (Code Civ. Proc., §§ 473, subd. (a), 576.) Courts

liberally grant leave to amend based on a strong policy favoring resolution of all disputes between parties in the same case. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Morgan v. Super. Ct.* (1959) 172 Cal.App.2d 527, 530.) Thus, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment, and the delay will cause prejudice to the opposing party if leave to amend is permitted. (*Hirsa v. Super. Ct.* (1981) 118 Cal.App.3d 486, 490; see also *Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642 [“[I]nstances justifying the court’s denial of leave to amend are rare.”].) Absent prejudice, delay alone is insufficient to deny leave to amend. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.)

A

party requesting leave to amend must state what allegations in the previous pleading are proposed to be deleted and added, as well as specify where, by page, paragraph, and line number, the changes are located. (Cal. Rules of Court, rule 3.1324(a)(1)-(3).) The moving party must also attach the proposed amended pleading with a declaration by counsel, describing (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. (Cal. Rules of Court, rule 3.1324(b)(1)-(4).)

A.

Motion for Leave to File Second Amended  
Complaint

Plaintiff has attached both a clean and a redlined version of Plaintiff’s proposed Second Amended Complaint (“SAC”) and has submitted a declaration from Plaintiff’s counsel, satisfying the procedural requirements of California Rules of Court, rule 3.1324, subdivision (a).

The proposed amendment adds Government Code section 815.2 as a statutory basis for LAUSD’s liability on Plaintiff’s causes of action for assault, battery, and intentional infliction of emotional distress and adds two new causes of action for: (1) corporal punishment in violation of Education Code section 49001, subdivision (b), and Penal Code sections 273a and 273d; and (2) government employee negligence pursuant to Code of Civil Procedure section 431.10. (Mot., at p. 4; Vertanous Decl., ¶ 10, Exh. B.)

Plaintiff asserts that amendment is necessary to preserve

viable theories of recovery and permit meaningful discovery before trial. (Vertanous Decl., ¶ 11.) Plaintiff also asserts that the amendment will not prejudice Defendant because the operative facts have not changed since filing the Complaint and Defendants' statutory period for responding to the FAC had not yet expired as of the filing of the Motion, resulting in no need for scheduling delays. (Id., ¶¶ 11, 14; Mot., at p. 3.) Plaintiff avers that discovery has not yet commenced in the action. (Mot., at p. 7.)

LAUSD contends that Plaintiff has unnecessarily delayed bringing the amendment and that allowing it will prejudice LAUSD by dramatically expanding the scope of the case after it has already filed its Answer and written discovery has been propounded. (Opp'n, at pp. 7-8.) LAUSD further argues that the amendment is futile because the proposed additions fail to state a valid cause of action against LAUSD and cannot be cured by further amendment. (Id., at pp. 4-6.)

(1)

Delay in

Bringing the Amendment

LAUSD argues that, despite Plaintiff's counsel's assertions that the proposed amendment arose from recent investigation into the claims, the new causes of action are premised on facts within Plaintiff's knowledge at the outset of the litigation, inexcusably delaying bringing the amendment until after securing a preferential trial date. (Opp'n, at p. 7.) Plaintiff admits in the Motion that the operative facts on which the amendment is based are no different than the facts present when the original Complaint was filed five months ago. (Mot., at p. 3.) While Plaintiff's counsel explains that the Motion was prepared promptly after filing the FAC (Vertanous Decl., ¶ 13), he does not account for why investigation into viable causes of action could not have been made before then.

Nevertheless, delay alone in bringing amendment is insufficient grounds to deny leave to amend. (Higgins, *supra*, 123 Cal.App.3d, at pp. 564-565.) Prejudice must also be present. (Ibid.)

(2)

Prejudice

to LAUSD

Prejudice may be found where an amendment opens up a new field of inquiry on the eve of trial, requires continuing a trial where the date is set and the parties have already blocked the time, or changes the complexity of the matter at a late stage in the proceedings. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

Here, LAUSD contends that permitting amendment will result in prejudice because it will expand the scope of discovery after the parties have already propounded written discovery. (Opp'n, at p. 8; Shahin Decl., ¶ 9.)

LAUSD fails to demonstrate how permitting the amendment would increase its discovery burden. As LAUSD itself notes, the operative facts underlying the action have been unchanged since the original Complaint was filed. (Opp'n, at p. 7.) While it may not have anticipated defending against a theory of respondeat superior liability for Hernandez's actions, LAUSD's investigation into the negligent hiring, supervision, and retention claim originally asserted against it would presumably have included discovery regarding Hernandez's conduct.

Even if the scope of discovery was broadened by the amendment, expansion of the scope of discovery does not, by itself, constitute prejudice. In supporting liberality in allowing amendments, case law confirms that prejudice will only be found where it would be unreasonable under the circumstances to expand the scope of the claims, such as where there is no possibility that the new discovery will be completed before trial. (E.g., *Magpali*, supra, 48 Cal.App.4th, at pp. 468-488.) Here, there is no trial date currently set and no discovery cutoff has been established. LAUSD thus has ample time to investigate any new claims against it.

The Court accordingly finds that LAUSD has failed to show that prejudice would result from permitting the amendment.

(3)

Failure

to State a Cause of Action

"[T]he failure of a proposed amendment to state facts sufficient to constitute a cause of action or defense may support an order denying a motion to amend." (*Cal. Casualty Gen. Insurance Co. v. Super. Ct.*

(1985) 173 Cal.App.3d 274, 280 (Cal. Casualty), disapproved on another ground in *Kransco v. American Empire Surplus Lines Insurance Co.* (2000) 23 Cal.4th 390, 406.) Denial is most appropriate where the insufficiency is established by controlling precedent and cannot be cured by further amendment. (Cal. Casualty, at pp. 280-281.) In other instances, the preferable course is to allow amendment “and then let the parties test its legal sufficiency in other appropriate proceedings.” (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760, citing *Kittredge Sports Co. v. Super. Ct.* (1989) 213 Cal.App.3d 1045, 1048.)

(a)

The Intentional

Torts

The

SAC asserts causes of action for assault, battery, and intentional infliction of emotional distress against LAUSD on a vicarious theory of liability. (Vertanous Decl., Exh. A, ¶¶ 63-64, 81-82, 103-104.) Plaintiff alleges that Hernandez was working in the general office area at the time of the incident, approached a crying Plaintiff in an intimidating manner, acting as though she intended to strike and telling Plaintiff to “be quiet,” and then forcefully pushed Plaintiff into a table, causing Plaintiff emotional, psychological, and physical harm. (SAC, ¶¶ 15-18.)

Public

entities may not be liable for injury except as provided by statute. (Gov. Code, § 815, subd. (a).) Government Code section 815.2 permits a public entity to be held vicariously liable for the conduct of its employees if that conduct would give rise to a claim against the employee. (Id., § 815.2, subd. (a).) The act or omission of the employee must have been conducted within the scope of his or her employment. (Ibid.)

“[U]nder

California law, an employer is liable for risks ‘arising out of the employment.’ [Citations.]” (*Perez v. Van Groningen & Sons, Inc.* (1986) 41 Cal.3d 962, 968.) “A risk arises out of the employment when ‘in the context of the particular enterprise an employee’s conduct is not so unusual or startling that it would seem unfair to include the loss resulting from it among other cost’s of the employer’s business.’” (Ibid.) The relevant inquiry is whether the risk may be considered as “typical or broadly incidental” to the

employer's enterprise. (Ibid.) "Whether an act is within the scope of employment is a question of fact." (Ducey v. Argo Sales Co. (1979) 25 Cal.3d 707, 722.) "However, the issue becomes a question of law when the facts are undisputed and no conflicting inferences are possible." (Perez, at p. 968.)

LAUSD

contends that Hernandez's intentional conduct, as alleged, cannot have been within the scope of her employment with LAUSD because her conduct was not typical or incidental to Hernandez's duties with the school. (Opp'n, at p. 6.) LAUSD, however, provides no controlling authority concluding that physical discipline is necessarily outside the scope of public employment.

LAUSD further argues that Hernandez is immune from liability under Government Code section 820.2. Pursuant to that section, "an employee is immune from liability where the alleged injury "result[s] from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused."

Discretionary immunity is reserved for basic policymaking decisions and are not applied to shield acts which are in the nature of routine duties incident to normal operation. (Barner v. Leeds (2000) 24 Cal.4th 676, 685.) Here, LAUSD presents no authority supporting that Hernandez was vested with any discretionary duties in her role with the school. The Court accordingly cannot, as a matter of law, determine either that Hernandez is immune from liability for her conduct toward Plaintiff or that any deficiencies in pleading would not be curable. The Court therefore does not find that the addition of Government Code section 815.2 liability against LAUSD for the intentional torts of assault, battery, and intentional infliction of emotional distress are futile.

#### (b) Third Cause of Action for Corporal Punishment

Plaintiff's new third cause of action alleges violations of Penal Code sections 273a and 273d and Education Code section 49001, subdivision (b). Plaintiff alleges that Hernandez's forceful pushing on Plaintiff into a table constituted unlawful corporal punishment prohibited by Education Code section 49001, and that the act willfully caused Plaintiff to suffer unjustifiable physical pain and mental suffering in violation of the Penal

Code. (SAC, ¶¶ 85-87.)

"A violation of statute does not necessarily give rise to a private cause of action." (Lu v. Hawaiian Gardens Casino, Inc. (2010) 50 Cal.4th 592, 596.) The right to sue depends on whether the Legislature has manifested an intent to create a private right of action under the statute. (Ibid.) Intent may be manifested by the language of the statute or through a statute's legislative history. (Ibid.) The language of a statute indicates the intent to create a cause of action if there is clear, understandable, and unmistakable language to that effect. (Ibid.)

Pursuant to Education Code section 49001, "[n]o person employed by or engaged in a public school shall inflict, or cause to be inflicted corporal punishment upon a pupil." (Educ. Code, § 49001, subd. (b).) Section 49000 clarifies that the prohibition exists to safeguard children during a vulnerable and impressionable period of their lives. Nothing in these statutes indicates that a private citizen may sue a school employee for violating them. They are purely prohibitive in nature.

Penal Code section 273a provides for a punishment of imprisonment and minimum parole conditions for any person who, "under circumstances or conditions likely to produce great bodily harm or death, willfully causes or permits any child to suffer, or inflicts thereon unjustifiable physical pain or mental suffering." (Pen. Code, § 273a, subds. (a), (c).) It also provides that any person who inflicts such pain or mental suffering under conditions "other than those likely to produce great bodily harm or death" is guilty of a misdemeanor. (Id., § 273a, subd. (b).) Penal Code section 273d similarly provides for imprisonment or a fine for willfully inflicting "cruel or inhuman corporal punishment or an injury resulting in a traumatic condition" upon a child. (Pen. Code, § 273d, subd. (a).)

As with Education Code section 49001, there is no language in Penal Code sections 273a and 273d authorizing a civil cause of action against a person who violates either section.

Plaintiff's does not address the lack of explicit language in the foregoing statutes creating a private cause of action. The Court accordingly finds that the statutes do not create a private cause of action. Plaintiff accordingly may not maintain a cause of action for corporal



punishment in violation of the statutes, and the third cause of action fails to state a claim. The Court finds this failure to be incurable, rendering its addition to any amended pleading futile.

The  
Motion is therefore DENIED as to the third cause of action.

As  
to the remainder of the proposed amendment, the Motion is GRANTED.

#### CONCLUSION

The Court GRANTS IN PART Plaintiff's Motion for Leave to File Second Amended Complaint, consistent with the foregoing ruling. Plaintiff is ordered to serve and file her Second Amended Complaint within 10 days of this Order.

Moving party to give notice.